

Court No. - 38

Case :- WRIT - C No. - 8609 of 2019

Petitioner :- Smt. Shayda Begum

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Kaushal Kumar Pandey, Anand Ji Mishra

Counsel for Respondent :- C.S.C., Ajay Kumar

Hon'ble Abhinava Upadhyaya, J.

Hon'ble Jayant Banerji, J.

Sri Jitendra Kumar holding brief of Sri Ajay Kumar appearing for respondent nos. 2 and 3 may seek instructions.

Put up this case as fresh on 29.3.2019.

Order Date :- 14.3.2019

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(Jayant Banerji, J) (Abhinav Upadhyaya, J)

Court No. - 32

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**Counsel for Petitioner :- Kaushal Kumar
Pandey, Anand Ji Mishra**

Counsel for Respondent :- C.S.C., Ajay Kumar

Hon'ble Shashi Kant Gupta, J.

Hon'ble Pradeep Kumar Srivastava, J.

This writ petition has been filed, *inter alia*, for the following relief:

"Issue a writ or direction in the nature of certiorari quashing the impugned assessment notice dated 7.12.2018 and demand notice dated 31.1.2019 issued by the respondent no. 3, the Executive Engineer Electricity Urban Distribution Division III Meerut enclosed as Annexure-1 to the writ petition."

Learned counsel for the petitioner submits that the impugned notices have been issued by the electricity department without affording any opportunity of hearing and following the provisions contained under the U.P. Electricity Supply Code, 2005.

Learned counsel for the petitioner after arguing the matter at length confined his prayer to the extent that the petitioner may be permitted to make a fresh objection/representation before the

concerned authority in respect of his grievances with a direction to the concerned authority to decide the same within a stipulated period.

Heard learned counsel for the petitioner, learned counsel for the electricity department and perused the record.

Considering the facts and circumstances of the case and without expressing any opinion on the merits of the case, the petitioner is directed to appear on 22.4.2019 at 11.00 A.M. before the Respondent No.3, Executive Engineer and make a fresh representation/objection before the said authority ventilating his grievances along with the certified copy of this order enclosing therewith a copy of the writ petition along with its Annexures and, if any such representation/objection is made, the said authority shall make all endeavours to consider and decide the same by a speaking order after considering the representation/ objections of the petitioner in accordance with law expeditiously preferably within 30 days from the date of receipt of the said representation/objection after affording opportunity of hearing to the petitioner.

It is open for the petitioner to adduce any cogent evidence, if any, in support of his contention and take all legal pleas as permissible in law.

For a period of 45 days from today or till the disposal of the representation/objection, whichever is earlier, no coercive action shall be taken against the petitioner.

With this observation, this writ petition stands disposed of.

Order Date :- 4.4.2019

MLK